BRENDAN NGWA NFORBI
Plaintiff, In Propria Persona
1455 Cat Tail Drive
Stockton, CA 95204
Telephone: (209) 801-4442
E-mail: bnn.cdl@gmail.com

UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGWA NFORBI, Plaintiff, v. **SANTIAGO MEZA-GONZALEZ (CHP #023295); JOSE MELANO (CHP #023054); and DOES 1-10,** Defendants.	**Case No. 4:26-cv-08271-ASK** **PLAINTIFF'S REQUEST FOR CLERK'S ENTRY OF DEFAULT AS TO DEFENDANTS MEZA-GONZALEZ AND MELANO** Fed. R. Civ. P. 55(a) Judge: Hon. Ajay S. Krishnan Related: 3:26-cv-05953-CRB

TO THE CLERK OF COURT AND TO DEFENDANTS SANTIAGO MEZA-GONZALEZ AND JOSE MELANO:

Plaintiff BRENDAN NGWA NFORBI, appearing in propria persona, requests that the Clerk enter the defaults of Defendants Santiago Meza-Gonzalez and Jose Melano under Federal Rule of Civil Procedure 55(a). The facts are in the accompanying declaration.

I.

THE RECORD ON THE DOCKET

The operative pleading is the First Amended Complaint filed August 17, 2026 (Dkt. 5). The Clerk issued summonses as to both defendants on August 10, 2026 (Dkt. 3).

As to Defendant Jose Melano, Document 12 is a summons returned executed. The docket entry states that Melano was served on August 14, 2026, and that his answer was due September 4, 2026.

As to Defendant Santiago Meza-Gonzalez, Document 16 is a summons returned executed. The docket entry states that Meza-Gonzalez was served on August 27, 2026, and that his answer was due September 17, 2026.

II.

FAILURE TO PLEAD OR OTHERWISE DEFEND

As of the date of this request, neither Melano nor Meza-Gonzalez has filed an answer, a Rule 12 motion, or any other paper pleading or defending against the First Amended Complaint. Neither defendant has appeared. No attorney has appeared for either defendant on this docket.

Plaintiff's Civil L.R. 7-11 administrative motion directing Deputy Attorney General Haiyang A. Li to accept service for Meza-Gonzalez (Dkt. 13) remains pending. This request does not withdraw Document 13. It seeks Rule 55(a) entry of default on the answer-due dates the Clerk has already entered on Documents 12 and 16.

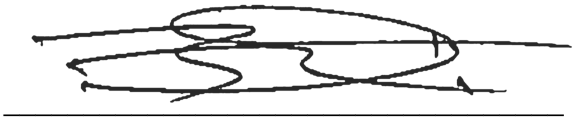
III.

RELIEF REQUESTED

Plaintiff requests that the Clerk enter the defaults of Santiago Meza-Gonzalez and Jose Melano under Rule 55(a). This is not a request for default judgment under Rule 55(b). A proposed Clerk's Entry of Default accompanies this request.

Dated: September 18, 2026

Respectfully submitted,



BRENDAN NGWA NFORBI

Plaintiff, In Propria Persona

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Plaintiff, In Propria Persona
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UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGWA NFORBI, Plaintiff, v. **SANTIAGO MEZA-GONZALEZ (CHP #023295); JOSE MELANO (CHP #023054); and DOES 1-10,** Defendants.	**Case No. 4:26-cv-08271-ASK** **DECLARATION OF BRENDAN NGWA NFORBI IN SUPPORT OF REQUEST FOR CLERK'S ENTRY OF DEFAULT** Fed. R. Civ. P. 55(a) Judge: Hon. Ajay S. Krishnan Related: 3:26-cv-05953-CRB

I, BRENDAN NGWA NFORBI, declare as follows:

1. I am the Plaintiff in this action. I am over eighteen years of age. I make this declaration from my personal knowledge in support of Plaintiff's Request for Clerk's Entry of Default as to Defendants Santiago Meza-Gonzalez and Jose Melano. If called, I could and would testify competently to these facts.

2. This action is Nforbi v. Meza-Gonzalez et al., No. 4:26-cv-08271-ASK (N.D. Cal.), related to Newanforbi v. Serrato, No. 3:26-cv-05953-CRB. The operative pleading is the First Amended Complaint (Dkt. 5).

3. On August 31, 2026, the Clerk entered Document 12: Summons Returned Executed as to Jose Melano. Document 12 states that Melano was served on August 14, 2026, and that

his answer was due September 4, 2026. The underlying AO 440 return (also filed as Dkt. 5-1) shows service by Clifford Black of C&P Process Server on Officer Reed at California Highway Patrol, South Sacramento Area, 6 Massie Court, Sacramento, California 95823, on August 14, 2026. Officer Reed is designated by law to accept service of process on behalf of the California Highway Patrol at that station.

4. On September 14, 2026, the Clerk entered Document 16: Summons Returned Executed as to Santiago Meza-Gonzalez. Document 16 states that Meza-Gonzalez was served on August 27, 2026, and that his answer was due September 17, 2026. Document 16 attaches the Declaration of Service and Declaration of Reasonable Diligence of Daniel Fischer (Run With It order 15645547), reflecting substituted delivery at California Highway Patrol, Modesto Area, 4030 Kiernan Avenue, Modesto, California 95356, on August 27, 2026, after attempts on August 25 and August 26, 2026.

5. I reviewed the PACER / CM/ECF docket for this action on September 18, 2026. As of that review, and as of the date of this declaration, neither Melano nor Meza-Gonzalez has filed an answer, a motion under Rule 12, a notice of appearance, or any other paper pleading or otherwise defending against the First Amended Complaint. No counsel has appeared for either defendant on this docket.

6. The time for Melano to plead or otherwise defend, as stated on Document 12 (September 4, 2026), has expired. The time for Meza-Gonzalez to plead or otherwise defend, as stated on Document 16 (September 17, 2026), has expired.

7. To my knowledge, neither Melano nor Meza-Gonzalez is an infant or an incompetent person.

8. To my knowledge after reasonable investigation of the record in this action and in the

related civil matters arising from the same November 1, 2024 incident, neither Melano nor Meza-Gonzalez is in military service within the meaning of the Servicemembers Civil Relief Act, 50 U.S.C. §§ 3901–4043. Both are California Highway Patrol officers sued in their individual capacities.

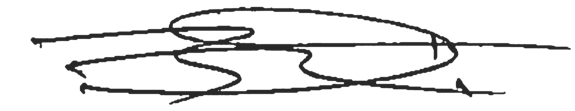
9. Document 13 (Plaintiff's administrative motion directing Deputy Attorney General Haiyang A. Li to accept service for Meza-Gonzalez) remains pending. I am not withdrawing Document 13. This request seeks entry of default under Rule 55(a) based on the answer-due dates the Clerk has entered on Documents 12 and 16.

10. I am requesting entry of default only. I am not requesting default judgment by this paper.

I declare under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

Executed on September 18, 2026, at San Jose, California.

Respectfully submitted,



BRENDAN NGWA NFORBI

Plaintiff, In Propria Persona

BRENDAN NGWA NFORBI
Plaintiff, In Propria Persona
1455 Cat Tail Drive
Stockton, CA 95204
Telephone: (209) 801-4442
E-mail: bnn.cdl@gmail.com

UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGWA NFORBI, Plaintiff, v. **SANTIAGO MEZA-GONZALEZ (CHP #023295); JOSE MELANO (CHP #023054); and DOES 1-10,** Defendants.	**Case No. 4:26-cv-08271-ASK** **[PROPOSED] CLERK'S ENTRY OF DEFAULT AS TO DEFENDANTS MEZA-GONZALEZ AND MELANO** Fed. R. Civ. P. 55(a) Judge: Hon. Ajay S. Krishnan Related: 3:26-cv-05953-CRB

It appearing from the record and from the Declaration of Brendan Ngwa Nforbi that Defendants Santiago Meza-Gonzalez and Jose Melano have been served with process; that the time within which each was required to plead or otherwise defend has expired; and that each has failed to plead or otherwise defend as provided by the Federal Rules of Civil Procedure:

NOW, THEREFORE, the defaults of Defendants Santiago Meza-Gonzalez and Jose Melano are hereby ENTERED pursuant to Federal Rule of Civil Procedure 55(a).

Dated: _____, 2026

_____

Clerk, United States District Court

Northern District of California

UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGWA NFORBI
Plaintiff

Case Number: 4:26-cv-08271-ASK

V.

SANTIAGO MEZA-GONZALEZ; JOSE MELANO; and DOES 1-10
Defendants

PROOF OF SERVICE

/

I hereby certify that on September 18, 2026, I served a copy of the attached

Plaintiff's Request for Clerk's Entry of Default as to Defendants Meza-Gonzalez and Melano; Declaration; [Proposed] Clerk's Entry of Default,

by placing a copy in a postage paid envelope addressed to the person(s) hereinafter listed, by depositing said envelope in the United States Mail at San Jose, California:

(List Name and Address of Each Defendant or Attorney Served)

Haiyang A. Li, Deputy Attorney General
Office of the Attorney General
300 South Spring Street, Suite 1702
Los Angeles, CA 90013-1230
Haiyang.Li@doj.ca.gov
Counsel for Captain G. Serrato in the related action;
prior counsel for Meza-Gonzalez and Melano on this incident

Jose Melano, CHP #023054
California Highway Patrol, South Sacramento Area
6 Massie Court
Sacramento, CA 95823
Defendant (Dkt. 12 — answer due September 4, 2026)

Santiago Meza-Gonzalez, CHP #023295
California Highway Patrol, Modesto Area
4030 Kiernan Avenue
Modesto, CA 95356
Defendant (Dkt. 16 — answer due September 17, 2026)

UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGWA NFORBI
v.
SANTIAGO MEZA-GONZALEZ et al.

Case Number: 4:26-cv-08271-ASK
PROOF OF SERVICE
(continued)

The names and addresses of the persons served appear on page 1.

I declare under penalty of perjury that the foregoing is true and correct.



Brendan Ngwa Nforbi, In Propria Persona